

MUTUAL CONFIDENTIALITY AGREEMENT

Effective Date: Jan 29, 2025

Counter-Party Name: Purdue Marketing Association

Address: 850 N Salisbury St, West Lafayette, IN

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Subject Matter of the "Project" (see Section 1. below): This document pertains

To all information discussed and transferred surrounding a Marketing Campaign proposal
by Purdue Marketing association to ILH to reboot our ILH branding sales focus around the
ILH (Reliance Label Solutions) software platform called Vision.

This Confidentiality Agreement (the "Agreement") is entered into by and between **Industrial Labels Holdings Corp.**, on behalf of itself and its affiliates, located at 28164 W Concrete Dr, Ingleside, IL 60041, and the "Counter-Party" identified above (each a "Party" and together the "Parties") and is effective as of the Effective Date. In order to protect certain Confidential Information, as described below, the Parties agree as follows:

1. Definition of Confidential Information. The Parties agree that proprietary and confidential information disclosed, either orally or in writing, by or on behalf of one Party ("Discloser") to the other Party ("Recipient"), including but not limited to proprietary and confidential information learned by Recipient from Discloser's employees, representatives, affiliates or agents or through an inspection of Discloser's or any of its affiliate's property, relating to ideas, concepts, inventions, designs, discoveries, compilations, algorithms, manufacturing or marketing techniques, methods or trade secrets of Discloser and/or its affiliates, the terms and conditions of this Agreement, and the existence of the discussions between the Parties, and all documents and all other record-bearing media disclosing or containing any of the foregoing information will be considered and referred to collectively in this Agreement as "Confidential Information". In addition, for purposes of this Agreement, "Confidential Information" shall include, without limitation, any discussions, summaries, analyses, studies, compilations or other documents or memorializations of or relating to the Confidential Information. Confidential Information, however, does not include information that: (a) is now or subsequently becomes publicly known, including in any patent or other publication, through no fault or breach on the part of Recipient; (b) Recipient can demonstrate to have had rightfully in its possession prior to disclosure to Recipient by Discloser; (c) is independently developed by Recipient without the use of any Confidential Information; or (d) Recipient rightfully obtains from a third party who has the right to transfer or disclose it to Recipient without limitation.

The Parties agree that disclosures will be limited to materials and information related to the Project (defined above). For the benefit of both Parties, Discloser will use good faith efforts to (i) label as "Confidential Information" that Confidential Information which it discloses in writing and (ii) with respect to orally-disclosed Confidential Information, advise Recipient that such information is deemed Confidential Information at the time of disclosure, however, the failure to do either does not mean that the disclosed information is not Confidential Information.

2. Nondisclosure and Nonuse of Confidential Information. Recipient agrees to protect Discloser's Confidential Information, using at least the same degree of care that it uses to protect its own confidential and proprietary information, but no less than a reasonable degree of care. Recipient agrees to use Discloser's Confidential Information for the sole purpose of evaluating a possible transaction or carrying on an agreed upon activity regarding the Project between the Parties. Recipient will not disclose, publish, or disseminate Discloser's Confidential Information to anyone other than those of its employees or representatives who have: (i) a need to know such information in order to accomplish such purpose; (ii) been informed by Recipient of the confidential nature of such information; and (iii) agreed to be bound by the terms and conditions of this Agreement prior to receiving such information. Recipient will be responsible for any violation of the terms of this Agreement by its employees or representatives. Recipient agrees not to use the Confidential Information for any other purpose or for its own or any third party's

benefit without the prior written consent of an authorized representative of Discloser in each instance. Recipient agrees that it shall not, nor assist others to, disassemble, decompile, reverse engineer, or otherwise attempt to recreate the Confidential Information of Discloser except with the prior written consent of Discloser. Recipient may disclose Confidential Information to the extent required by law, provided Recipient makes reasonable efforts to give Discloser notice of such requirement prior to any such disclosure and takes reasonable steps to obtain protective treatment of the Confidential Information.

3. Ownership of Confidential Information. All Confidential Information, in whatever form disclosed, shall remain the exclusive property of Discloser. Except as expressly set forth herein, no license or other rights to Confidential Information are granted or implied hereby and Discloser retains all of its rights in or to its Confidential Information. Recipient shall not make any patent or other intellectual property filings or registrations based on Discloser's Confidential Information, or take any other action which would attack or put in issue the title or any rights of Discloser in and to its Confidential Information. Recipient agrees to assign, or, upon Recipient's failure to assign, to authorize the applicable patent or other intellectual property office to assign, to Discloser any patent or other intellectual property filing made by Recipient in violation of this Agreement. Recipient agrees to indemnify Discloser from and against any and all costs, damages, or liabilities, including but not limited to Discloser's attorney's fees, incurred by Discloser in the enforcement of these provisions.

4. No Warranty. All information is provided "AS IS", and without any warranty, whether express or implied, as to its accuracy or completeness.

5. Return of Documents. Within ten (10) days of receipt of Discloser's written request, and at Discloser's option, Recipient will either return to Discloser all tangible Confidential Information, including but not limited to all electronic files, documentation, notes, plans, drawings, and copies thereof, or will provide Discloser with written certification that all such tangible Confidential Information has been destroyed. Notwithstanding the foregoing, if and to the extent required by the Disclosing Party's internal documentation retention requirements or applicable law, the Disclosing Party may retain copies of the Confidential Information, provided that such copies shall not be used for any purpose other than to comply with such internal documentation requirements or applicable law, as the case may be.

6. Equitable Relief. The Parties hereby agree that unauthorized disclosure or use of Confidential Information could cause irreparable harm and significant injury to Discloser that may be difficult to ascertain. Accordingly, the Parties agree that each Party will have the right to seek and obtain immediate injunctive relief to enforce obligations under this Agreement in addition to any other rights and remedies it may have.

7. No Implied Waiver. The failure or delay of either Party to exercise any of its rights herein will not constitute a waiver of such rights unless expressly waived in writing.

8. Term. This Agreement shall have a term of three (3) years from the Effective Date; provided, however, that nothing in this Agreement shall limit or supersede any common law, statutory or other protections of trade secrets (as such term is defined under applicable law) where such protections provide a Party with greater rights or protections for a longer duration than provided under this Agreement.

9. Entire Agreement. This Agreement constitutes the entire agreement with respect to the Confidential Information disclosed pursuant to this Agreement and supersedes all prior or contemporaneous oral or written agreements concerning such Confidential Information. This Agreement may not be amended except by written agreement signed by authorized representatives of both Parties.

10. Governing Law. This Agreement will be governed by and construed in accordance with the laws of the State of Illinois. The Parties further submit to and waive any objections to the exclusive jurisdiction of and venue in the U.S. District Court for the Northern District of Illinois or any other forum in Chicago, Illinois for any litigation arising out of this Agreement.

ACKNOWLEDGED AND AGREED:

Industrial Labels Holdings Corp.

By: Bun Ly

Title: Vice President Marketing

Date: Jan 29, 2025



COUNTER-PARTY

By: Ben Koch

Title: Project Lead

Date: Jan 29, 2025



Ben Koch (Jan 29, 2025 13:09 EST)

ILH_ Short-Form Mutual NDA with PMA

01-28-2025

Final Audit Report

2025-01-29

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